

HOUSE No. 2794

The Commonwealth of Massachusetts

PRESENTED BY:

Mark J. Cusack

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the cost of living adjustment for state and teacher retirees and certain long term career public retirees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mark J. Cusack</i>	<i>5th Norfolk</i>	<i>1/16/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>9/29/2025</i>

HOUSE No. 2794

By Representative Cusack of Braintree, a petition (accompanied by bill, House, No. 2794) of Mark J. Cusack relative to the cost of living adjustment for state and teacher retirees and certain long term career public retirees. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the cost of living adjustment for state and teacher retirees and certain long term career public retirees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Paragraph (c) of section 102 of chapter 32 of the General Laws, as
2 appearing in the 2022 Official Edition, is amended by striking out in lines 34, 38 and 46 the
3 dollar amount “\$13,000”, and inserting in place thereof the following dollar amount: - \$18,000.

4 SECTION 2. Section 102 of Chapter 32 of the General Laws, as so appearing, is hereby
5 amended by adding at the end thereof the following:- (h) Every member of the state employee
6 retirement system and the teacher’s retirement system who qualifies and has attained fifteen full
7 years of retirement as of June 30 of the prior fiscal year who receive a cost of living increase
8 shall receive an additional one hundred dollar benefit to said increase. Said one hundred dollar
9 benefit shall be granted only to members of the state retirement system and the teacher’s
10 retirement system whose total annual retirement benefit is less than the average annual
11 retirement benefit as determined by the retirement system’s most recent actuarial valuation and
12 retired with twenty or more years of creditable service, provided however, those members who

13 retired with a disability benefit under sections 6, 7 or 26 shall be eligible with less than twenty
14 years of creditable service. Any surviving beneficiary of a deceased member who would
15 otherwise be eligible for aforesaid additional benefit under this paragraph, including those
16 beneficiaries receiving a benefit under sections 9, 12 or 101, shall receive said additional benefit
17 if it is determined they are eligible by the retirement board in which they are a participant.

18 Every member of the state employee retirement system and the teacher's retirement
19 system who has attained twenty full years of retirement as of June 30 of the prior fiscal year who
20 receive a cost of living increase shall receive an additional two hundred dollar benefit to said
21 increase. Said two hundred dollar benefit shall be granted only to members of the state retirement
22 system and the teacher's retirement system whose total annual retirement benefit is less than the
23 average annual retirement benefit as determined by the retirement system's most recent actuarial
24 valuation and retired with twenty or more years of creditable service. Any surviving beneficiary
25 of a deceased member who would otherwise be eligible for aforesaid additional benefit under
26 this paragraph, including those beneficiaries receiving a benefit under section 9, 12 or 101, shall
27 receive said additional benefit if it is determined they are eligible by the retirement board in
28 which they are a participant.

29 SECTION 3. Section 103 of Chapter 32 of the General Laws, as so appearing, is hereby
30 amended by adding at the end thereof the following:- (k) Upon acceptance of the provisions of
31 this paragraph as provided in paragraph (n), every member of a retirement system other than the
32 state employees retirement system and the teachers' retirement system, who has attained fifteen
33 full years of retirement as of June 30 of the prior fiscal year and receives a cost of living increase
34 pursuant to this section, shall receive an additional one hundred dollar benefit to said increase.
35 Said one hundred dollar benefit shall be granted only to members of a retirement system, other

36 than the state employees retirement system and the teachers' retirement system, whose total
37 annual retirement benefit is less than the average annual retirement benefit as determined by their
38 retirement system's most recent actuarial valuation and retired with twenty or more years of
39 creditable service, provided however, those members who retired with a disability benefit under
40 sections 6, 7 or 26 shall be eligible with less than twenty years of creditable service. Any
41 surviving beneficiary of a deceased member who would otherwise be eligible for aforesaid
42 additional benefit under this paragraph, including those beneficiaries receiving a benefit under
43 sections 9, 12 or 101, shall receive said additional benefit if it is determined they are eligible by
44 the retirement board in which they are a participant.

45 (l) Upon acceptance of the provisions of this paragraph as provided in paragraph (n),
46 every member of a retirement system other than the state employees retirement system and the
47 teachers' retirement system, who has attained twenty full years of retirement as of June 30 of the
48 prior fiscal year and receives a cost of living increase pursuant to this section, shall receive an
49 additional two hundred dollar benefit to said increase. Said two hundred dollar benefit shall be
50 granted only to members of a retirement system other than the state employees retirement system
51 and the teachers' retirement system whose total annual retirement benefit is less than the average
52 annual retirement benefit as determined by their retirement system's most recent actuarial
53 valuation and retired with twenty or more years of creditable service, provided however, those
54 members who retired with a disability benefit under sections 6, 7 or 26 shall be eligible with less
55 than twenty years of creditable service. Any surviving beneficiary of a deceased member who
56 would otherwise be eligible for aforesaid additional benefit under this paragraph, including those
57 beneficiaries receiving a benefit under sections 9, 12 or 101, shall receive said additional benefit
58 if it is determined they are eligible by the retirement board in which they participate.

(m) Upon acceptance of the provisions of this paragraph as provided in paragraph (n), every member of a retirement system other than the state employees retirement system and the teachers' retirement system, who has attained fifteen but not more than twenty full years of retirement as of June 30 of the prior fiscal year and receives a cost of living increase pursuant to this section, shall receive an additional one hundred dollar benefit and for those who has attained more than twenty years of retirement as of June 30 of the prior fiscal year, shall receive an additional two hundred dollar benefit to said increase. Such additional benefits shall be granted only to members of a retirement system, other than the state employees retirement system and the teachers' retirement system, whose total annual retirement benefit is less than the average annual retirement benefit as determined by their retirement system's most recent actuarial valuation and retired with twenty or more years of creditable service, provided however, those members who retired with a disability benefit under sections 6, 7 or 26 shall be eligible with less than twenty years of creditable service. Any surviving beneficiary of a deceased member who would otherwise be eligible for aforesaid additional benefit under this paragraph, including those beneficiaries receiving a benefit under sections 9, 12 or 101, shall receive said additional benefit if it is determined they are eligible by the retirement board in which they are a participant.

(n) Acceptance of the provisions of paragraphs (k), (l) or (m) shall be by a majority vote of the board of such system, subject to the approval of the legislative body. For the purpose of this section, "legislative body" shall mean, in the case of a city, the city council in accordance with its charter, in the case of a town, the town meeting, in the case of a district, the district members, and, in the case of an authority, the governing body. In the case of a county or region, acceptance shall be by the county or regional retirement board advisory council at a meeting called for that purpose by the county or regional retirement board, Acceptance of this paragraph

82 shall be deemed to have occurred upon the filing of the certification of such vote with the
83 commission. A decision to accept the provisions of this paragraph may not be revoked.

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